

(46)

Tentative Ruling

Re: ***Ivan Gonzalez v. Inter-Con Security Systems, Inc.***
Superior Court Case No. 25CECG02962

Hearing Date: September 15, 2026 (Dept. 502)

Motion: to Compel Arbitration and Stay Court Proceedings

Tentative Ruling:

To deny, without prejudice.

Explanation:

Defendant Inter-Con Security Systems, Inc. ("defendant" or "Inter-Con") moves to compel arbitration and stay court proceedings, subject to a purported arbitration agreement between Inter-Con and plaintiff Ivan Gonzalez ("plaintiff").

In moving to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists. (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 540-543.)

"In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. [Citation] The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. (*Ibid.*) If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. (*Ibid.*) At that point, and '[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.' " (*Garcia v. Stoneledge Furniture LLC* ("Garcia") (2024) 102 Cal.App.5th 41, 51, internal citations omitted.)

Here, defendant provides a copy of the "Mutual Agreement to Arbitrate Claims." (Griffiths Decl., ¶ 11, Exh. A.) The court previously determined that the declaration of Brianne Schuck was sufficient to authenticate the attached agreement. (See Request for Judicial Notice,¹ Item No. 6, Minute Order dated January 15, 2026.) While Ms. Schuck's

¹ Plaintiff's request for judicial notice is granted as to Item Nos. 4 and 6. The remaining Item Nos. 1, 2, 3, and 5 are granted only to the extent such records exist.

declaration was not submitted in support of this renewed motion, the filed declaration of Natalie Griffiths is also sufficient to meet the initial burden to show an agreement to arbitrate, as Ms. Griffiths is a custodian of records for defendant's personnel files. (Griffiths Decl., ¶ 1.) The custodian of a document does not need to have been present when the document was created or signed to authenticate a document in a company's files. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.)

Plaintiff then specifically denies signing the arbitration agreement, electronically or otherwise. (Gonzalez Decl., ¶ 4.) A denial of signing an arbitration agreement is sufficient to shift the burden back to the moving party. (*Garcia, supra*, 102 Cal.App.5th at 52.)

In *Ruiz v. Moss Bros. Auto Group, Inc.*, a declaration that failed to explain how Ruiz's printed electronic signature, or the date and time printed next to the signature, came to be placed on the arbitration agreement was insufficient to meet defendant's burden. A supplemental declaration did not provide the necessary authentication where the declarant explained that the agreement was part of an employee acknowledgment form that is presented to all employees and that each employee is required to log into the company's HR system, using his or her "unique login ID and password," to review and sign the employee acknowledgment form. This too was insufficient, as the declarant did not explain how, or upon what basis, she inferred that the electronic signature was "the act of" Ruiz, leaving a critical gap in the evidence supporting the petition. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843-844.)

Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047 provides an example of a showing that would be found adequate:

Tellez detailed SCPMG's security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement and the DRP. Based on this procedure, she concluded that the "name Jay Baniaga Espejo could have only been placed on the signature pages of the employment agreement and the DRP by someone using Dr. Espejo's unique user name and password.... [¶] Given this process for signing documents and protecting the privacy of the information with unique and private user names and passwords, the electronic signature was made by Dr. Espejo" on the employment agreement and the DRP at the date, time, and IP address listed on the documents. These details satisfactorily meet the requirements articulated in *Ruiz* and establish that the electronic signature on the DRP was "the act of" Espejo (*Civ.Code*, § 1633.9, *subd.* (a)), and therefore provide the necessary factual details to properly authenticate the document.

(*Id.* at p. 1062, fn omitted.)

Here, there remain to be gaps in the evidence as to whether plaintiff signed the arbitration policy. First, the declaration in *Ruiz* was from defendant's business manager, and the declaration in *Espejo* was from a systems consultant. Here, the declaration of Natalie Griffiths submitted in support of the motion is made in her capacity as a "Chief

Compliance Officer and Senior Vice President of Employee Relations," and "[previous] Vice President of Compliance and Assistant General Counsel and as Corporate Counsel." (Griffiths Decl., ¶ 1.) In a motion such as this, the court would expect to see a declaration from a qualified individual such as a systems engineer, or someone in information technology. The declaration by Ms. Griffiths based on information and belief is insufficient, as it does not bridge the evidentiary gap to explain the technological connection between plaintiff's credentials and the act of electronically signing the arbitration agreement. She testifies as having "gained insight into how the PayCom system works as part of my knowledge and experience gained from doing my job." (Griffiths Decl., ¶ 5.) Acknowledging that plaintiff would have needed to use an individualized PayCom account to electronically sign his onboarding documents, including the contested arbitration agreement, is not enough to establish that plaintiff actually signed the agreement.

Civil Code 1633.9 subdivision (a) states that "[a]n electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (Civ. Code, § 1633.9, subd. (a).)

There is an absence of any supporting records to corroborate the conclusions of Ms. Griffiths' declaration. It is not supported that plaintiff had an account inaccessible (other than viewing) to anyone other than him (Id., ¶ 8), that he signed other HR documents with the same signature and/or electronic identification (Id., ¶ 9), that defendant received a notice and executed copy when plaintiff electronically executed the agreement (Id., ¶ 14), or that plaintiff logged in and entered any of the identifying information required to place his electronic signature (Id., ¶ 15), etc. Ultimately, what is missing is evidence that plaintiff used his unique credentials to access and execute the agreement. The court cannot determine from the declaration alone that the disputed electronic signature appearing on the agreement resulted from plaintiff's use of credentials exclusively controlled by him, or was an "act" of plaintiff under section 1633.9.

Ms. Griffiths attests that she "reviewed documents contained in Plaintiff's personnel file" and "Inter-Con's business records, to which I have access[.]" (Griffiths Decl., ¶ 4.) These records and documents are not identified in the declaration, and the arbitration agreement alone is attached as Exhibit A. This, however, suggests the existence of other supporting documentation that could connect the signatory process and plaintiff's alleged act – but it is not before the court.

In *Garcia*, there was also an evidentiary gap. (*Garcia v. Stoneledge Furniture LLC*, *supra*, 102 Cal.App.5th 41.) There, the declarant stated that the plaintiff had created a unique user ID and password, accessed the onboarding system, reviewed the arbitration agreement, and electronically signed it. However, the court held the declaration to be insufficient because the declarant did not explain *how* he knew the electronic signature could only have been placed on the agreement through plaintiff's credentials. He merely concluded that plaintiff signed it as her name appeared on the agreement. (*Garcia*, at p. 53.) Defendant here attempts to distinguish from *Garcia*, but misses the point that it is not sufficient to merely identify the unique ID or the credentials and authentication that are required, but the declarant needs to show *how* the plaintiff's

unique credentials are linked to the agreement. While Ms. Griffiths mentions creation of an e-sign ID number, this still has not been established by a preponderance of the evidence to link plaintiff to the presented signature. (Griffiths Decl., ¶ 15.)

The court intends to deny the motion to compel arbitration. In light of the foregoing, the court will not address the arguments of unconscionability at this time.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-13-26
(Judge's initials) (Date)